ILLUSTRATIVE ACADEMIC MATERIAL - FICTIONAL
Aarav Foods Pvt. Ltd. v. Sunrise Retail Pvt. Ltd. (fictional)
Internal matter ref. AF/TM/2026/01 (illustrative)

STATEMENT OF FACTS

Prepared on 24 February 2026 from the client's instructions. Facts marked 'alleged' or 'disputed' are not yet supported by documents in the file.

1. The client. Aarav Foods Pvt. Ltd. is a company incorporated on 14 June 2017 with its registered office in Pune. It has had a sales office in New Delhi since 2022.

2. The mark. Aarav Foods has sold baked millet snacks under the mark MILLETTA since 1 August 2019. The client states that MILLETTA is registered as a word mark in Class 30 on an application filed on 12 March 2019; the registration particulars have not yet been verified.

3. The packaging. MILLETTA packs are bright yellow with a green band across the lower third, an illustration of a millet stalk, and the word MILLETTA in dark green serif letters. A 75 g pack sells for Rs. 45.

4. Sales and promotion. According to unaudited management figures, MILLETTA sales were Rs. 11.6 crore in FY 2024-25. The client spent about Rs. 1.4 crore on promotion in 2025, mostly in-store displays in Maharashtra, Karnataka and the NCR.

5. The competing product. Sunrise Retail began selling baked millet crisps under the mark MILLETO in January 2026. MILLETO is sold in Sunrise Fresh stores and through quick-commerce apps. Its 70 g pack is mustard-yellow with a green lower band, and sells for Rs. 39.

6. How the client learned of it. Mr. Rohan Mehta, the client's Regional Sales Manager, first saw MILLETO on 3 February 2026 at the Sunrise Fresh store in Saket, New Delhi. The client says it had no earlier knowledge of the product.

7. Alleged confusion. On 10 February 2026 and 17 February 2026 the client's customer-care address received two e-mails complaining about stale 'MILLETTA' packs bought at Sunrise Fresh stores. Aarav Foods does not supply Sunrise Fresh. The senders have not been contacted and no receipts are available, so the complaints are unverified.

8. The client's position. The client alleges that MILLETO is phonetically and visually similar to MILLETTA, that the packs share the same colour scheme, and that shoppers with an imperfect recollection of MILLETTA are likely to be confused.

9. Points the other side is expected to raise. Sunrise Retail may say that 'millet' describes the product, that its SUNRISE house mark appears on every pack, and that MILLETO is sold only in its own stores.